

Court No. - 32

Case :- WRIT - C No. - 38451 of 2019

Petitioner :- A.S.P Ice Factory

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Santosh Kumar Dubey

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Shashi Kant Gupta,J.

Hon'ble Neeraj Tiwari,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari to quash the disconnection of the electricity dated 30.10.2019 issued by the respondent no. 2 to Rs. 8,86,096/- to the petitioner.

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondent no. 2 to provide the electricity connection of the petitioner in 69.8 K.V. which is numbered as MB No. 3020911, A/C 6412986223, LMV-6 in pursuance of the disconnection of the electricity dated 30.10.2019 issued to the respondent no. 2.

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 10 days from today, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 26.11.2019

Rmk.